

STANDING ORDER No. Ops.-11

(PREVIOUS STANDING ORDER NO. 66/09)

COMPENSATION FOR LOSS OR DAMAGE CAUSED TO PROPERTY OWNED, POSSESSED OR MAINTAINED BY THE POLICE DEPARTMENT ON CONVICTION OF ACCUSED PERSONS IN CRIMINAL CASES

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1. Several instances have come to notice in which the courts while imposing fines on the culprits responsible for loss or damage to police property have not awarded any compensation to the police department for the loss suffered by the department on account of the acts of omission and commission on the part of such culprits. This has been mainly due to failure on the part of the Investigating Officer and the Prosecuting Officers to press the court for the award of such compensation.
2. Compensation can be awarded by courts under the following legal provisions, which the Prosecutors must bear in mind at the time of arguing cases and they should insist upon the courts to suitably reimburse cost of damages to the department.
 - a) When a sentence of fine is imposed on conviction under Section 357 of the Code of Criminal Procedure.
 - (i) When a Court imposes a sentence of fine or a sentence (including a sentence of death) of which fine forms a part, the Court may, when passing judgment, order the whole or any part of the fine recovered to be applied.
 - (a) In defraying the expenses properly incurred in the prosecution.
 - (b) In the payment to any person of compensation for any loss or injury caused by the offence, when compensation is, in the opinion of the Court, recoverable by such person in a Civil Court.
 - (c) When any person is convicted of any offence for having caused the death of another person or of having abetted the commission of such an offence, in paying compensation to the persons, who are, under the Fatal Accidents, Act, 1855 (13 of 1855), entitled to recover damages from the person sentenced for the loss resulting to them from such death.
 - (d) When any person is convicted of any offence which included theft, criminal misappropriation, criminal breach of trust, or cheating, or of having dishonestly received or retained, or of having voluntarily assisted in disposing of stolen property

knowing 'or having reason to believe' the same to be stolen, in compensating any bonafide purchaser of such property for the loss of the same if such property is restored to the possession of the person entitled thereto.

- (ii) If the fine is imposed in a case which is subject to appeal, no such payment shall be made before the period allowed for presenting the appeal has elapsed, or, if an appeal be presented, before the decision of the appeal.
- (iii) When a Court imposes a sentence, of which fine does not form a part, the Court may, when passing judgment, order the accused person to pay, by way of compensation, such amount as may be specified in the order of the person who has suffered any loss or injury by reason of the act for which the accused person has been so sentenced.
- (iv) An order under this section may also be made by an Appellate Court or by the High Court or Court of Session when exercising its power of revision.
- (v) At the time of awarding compensation in any subsequent civil suit relating to the same matter, the Court shall take into account any sum paid or recovered as compensation under this section.
- (vi) When an offender is released after admonition u/s 3 of the Probation of Offenders Act, 1958 or is released on probation of good conduct u/s 4 of the said Act.

Section 5 of the Probation of Offenders Act, 1958.

The Court, directing the release of an offender u/s 3 or u/s 4 of the Act, may, if it thinks fit, make at the same time a further order directing him to pay such compensation as the Court thinks reasonable, for loss or injury caused to any person by the commission of such offence.

3. Loss or damage to police property can occur in the following types of case. The list is, however, not exhaustive but only illustrative:
 - (i) An offence which includes theft, criminal misappropriation criminal breach of trust or cheating, or of having dishonestly received or retained, or of having voluntarily assisted in disposing of, stolen property knowing or having reason to believe the same to be stolen, or in respect of property owned, possessed or maintained by the police department,
 - (ii) Vehicular accidents in which police vehicles are involved.

- (iii) Assault on police officers involving damages to their official uniform or other property.

In all such cases, request shall invariably be made to the trial courts to impose sentences of fines, with or without imprisonment, on the offenders and to award suitable compensation to the police department out of the amounts of fine realized. In the event of the offenders being released under the provisions of the Probation of Offenders Act, 1959, the Asst. Public Prosecutors, Addl. Public Prosecutors and Public Prosecutors as the case may, should insist upon the Courts to order the offenders to pay reasonable amount to the Police Department vice section.

4. In cases of rioting also, in which police and other departments of govt. suffer heavy losses, compensation should be claimed. Sometimes such cases are withdrawn by the govt. We must press for compensation in all such cases before actual withdrawal.

5. Besides the action for relief available in criminal courts, an application u/s 166 of the Motor Vehicles Act, 1988, should also be filed for recovery of damages and compensation as prescribed within stipulated period before MACT.

The previous S.O.No. 66 issued vide this Hdqrs. No. 39975-40225/C&T dated 20.12.88 is hereby cancelled.



(Yudhbir Singh Dadwal)
Commissioner of Police
Delhi

O.B.NO. 118/RB/PHQ DATED 27.10.2009

No. 19351-600 /RB/PHQ, dated Delhi the 27.10.2009